

BEFORE THE IOWA BOARD OF SOCIAL WORK

Re:	)	CASE NO. 15-0229
Social Work Masters Level License of	)	
	)	
JOHN MCDONALD	)	COMBINED STATEMENT OF
License No. 072638	)	CHARGES, SETTLEMENT
Respondent.	)	AGREEMENT, AND FINAL ORDER

COME NOW the Iowa Board of Social Work ("Board") and John McDonald ("Respondent"), 113 NE Grant St., Ankeny, IA 50021, and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order ("Order") pursuant to Iowa Code sections 17A.10 and 272C.3(4) (2015), and 645 IAC 12, stating the following:

A. STATEMENT OF CHARGES

COUNT I

Respondent is charged with engaging in the practice of social work without an active license in violation of Iowa Code section 154C.2(1) and 645 IAC 280.9(5), pursuant to 645 IAC 283.2(12), (26).

B. FACTUAL CIRCUMSTANCES

1. Respondent was issued Iowa license #072638 to practice social work on June 20, 2014.
2. Respondent's license #072638 became inactive on February 1, 2015.
3. Respondent reactivated license #072638 on September 1, 2015.
4. Respondent engaged in the practice of social work for which a license is required between February 1, 2015, and August 31, 2015, without an active license.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

5. The Board has jurisdiction over the parties and the subject matter of these proceedings.
6. Respondent admits the allegations in the Statement of Charges and acknowledges that the allegations, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.
7. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's action, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

8. Respondent acknowledges that he has the right to be represented by counsel on this matter.

9. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

10. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

11. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

12. This Order shall not be binding as to any new complaints received by the Board.

13. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

14. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

15. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

16. Respondent is hereby **CITED** for practicing social work without an active license and **WARNED** that Respondent's failure to comply with the law governing the practice of social work in Iowa could result in further discipline.

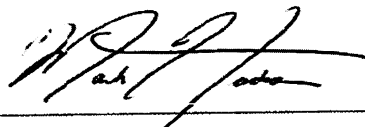
17. Respondent agrees to pay a **CIVIL PENALTY** in the amount of two hundred fifty dollars (\$250). The civil penalty shall be made payable to the Treasurer of Iowa and paid within sixty (60) days of the Board's approval of this Order. All civil penalty payments shall be deposited into the State of Iowa general fund. The civil penalty should be mailed to the Iowa Board of Social Work, Attn: Tony Alden, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319.

18. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154C, and 272C and 645 IAC 13 and 283.

This Combined Statement of Charges, Settlement Agreement, and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the 31 day of December, 2015.


JOHN MCDONALD
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the
Iowa Board of Social Work on the 8th day of February, 20 .


Chairperson
Iowa Board of Social Work

Copy to:

Laura Steffensmeier
Assistant Attorney General
Licensing & Administrative Law Division
Iowa Department of Justice
Hoover Building, 2nd Floor
Des Moines, IA 50319